

## 22STCV30388 22STCV30388

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#12 - DESTIN ROGERS,, et al. vs C & J FOOD COMPANY INC.

### PETITION FOR MINOR'S COMPROMISE

On April 16, 2025, a Petition for Approval of Compromise of Claim of a Minor was filed in this action by Defendant C & J Food Company Inc. as to the claim for minor Salem Griegh.

Salem Griegh is a minor born on July 14, 2020.

The petition states Salem was injured on September 16, 2020, in Rancho Cucamonga when a french fry fell onto his right arm, causing burn injuries and scarring.

The petition further states Salem received treatment through Kaiser Permanente in Victorville and Fontana, along with follow-up evaluations and plastic-surgery consultations, and that he has two areas of pigmentation on his right arm expected to lessen over time.

The petition seeks approval of a \$15,000 settlement for Salem, with no attorney's fees, no medical-expense reimbursement from Salem's proceeds, no other expenses charged to Salem's recovery, and deposit of the net funds into a blocked account for Salem's benefit.

The petition also states that money has been offered to other persons arising out of the same incident, and Attachment 11b(6) states that only Salem sustained physical injuries, that Destin Rogers and Brittni Aprea are Salem's parents, and that the remaining plaintiffs are Salem's siblings who witnessed the incident.

On May 9, 2025, Honorable Steven A. Ellis of Spring Street Courthouse, Department 29, continued the hearing on Salem's petition and identified multiple defects, including uncertainty whether Destin Rogers could act as guardian ad litem without counsel, the absence of medical records and proof of reduction of medical billing, inadequate support for apportionment, missing Attachments 17d and 17e, a missing Attachment 18b(2), and a materially incomplete proposed order on form MC-351. (5/9/25 Minute Order.)

On February 23, 2026, Honorable Cindy Pánuco of Spring Street Courthouse, Department 27, found that nothing had been filed to address the issues previously identified and that the petitions remained defective in the same manner.

On April 23, 2026, after reassignment to Alhambra Department X, the hearing on the petition was continued to June 25, 2026.

A later, hand-written, MC-350 form was filed on June 11, 2026, by Destin Rogers as petitioner and parent, lists Salem Griegh as the claimant, and states a \$15,000 recovery against C&J Food Company.

#### Tentative Ruling

Defendant's petition is DENIED without prejudice.

#### Legal Authority

An enforceable settlement of a minor's claim or that of a person lacking the capacity to make decisions can only be consummated with court approval. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Sup.Ct.* (2012) 202 Cal.App.4th 1333, 1337.) "[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests . . . [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Sup. Ct.* (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise pursuant to Code of Civil Procedure section 372 must comply with California Rules of Court, Rules 7.950, 7.951 and 7.952.

Under Code of Civil Procedure section 372, any compromise of claim or action or disposition of proceeds of judgment made for a minor or adult with a disability must be approved by the Court. (See also Probate Code § 3600, subd. (b) [a compromise or covenant for a disputed claim or damages, money, or other property of a minor or person who lacks legal capacity is valid only after it has been approved by the superior court].) A petition for court approval of a compromise of a minor or disabled adult's compromise or judgment of a pending action or proceeding to which this person is a party must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise, covenant, settlement, or disposition. (Cal. Rules of Court, rule 7.950; see also Cal. Rules of Court, rules 7.950.5-7.955.)

The petition is generally submitted on a completed Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (Judicial Council form MC-350). (Cal. Rules of Court, rule 7.950.) If the Court is satisfied that the compromise, covenant, settlement, or disposition is in the best interest of the person, then the Court should approve the same. (See *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1338.)

#### Legal Analysis

The Court cannot approve the petition on the present record.

Previously, Judge Ellis identified threshold procedural and evidentiary defects in May 2025, and then Judge Pánuco on February 23, 2026 found that those defects had not been cured. The defects included uncertainty regarding the procedural capacity in which petitioner was appearing on behalf of the minor in a pending action, missing disclosures concerning counsel's involvement, missing supporting attachments, and the absence of medical documentation the prior court required.

The recent MC-350 form filed by Plaintiff/Petitioner Destin Rogers does not resolve the defects. This Court notes that earlier MC-350 forms filed by Defendant identified Destin Rogers as both parent and guardian ad litem, while this later MC-350—filed by Destin Rogers himself—identifies him as parent only.

The Court also cannot make the required best-interest determination without an adequate evidentiary showing concerning Salem's injuries, treatment, and current condition. The petition describes the injury and proposed recovery, and it shows that no part of Salem's \$15,000 share would be reduced by fees or reimbursements.

Those terms appear to favor the minor. The apportionment explanation likewise supports Salem receiving the largest share because the papers state he alone sustained physical injuries.

But favorable terms do not eliminate the Court's independent duty to ensure the compromise is properly presented and adequately supported. The prior orders specifically required medical records, proof supporting the medical-expense reductions, and complete supporting attachments, and this action's docket and records do not show that those requirements were satisfied before or after the matter was transferred to Department X.

As a result, the Court cannot find that the petition is procedurally proper or that the compromise has been supported with the full disclosures necessary for approval.

#### Conclusion

The Petition to Approve Minor's Compromise as to Salem Griegh is DENIED WITHOUT PREJUDICE.

Any renewed petition must, at a minimum, do the following:

1. Clarify the procedural capacity in which petitioner seeks approval on behalf of the minor in this pending action.
2. Provide the medical records, physician report(s), and any proof supporting the stated medical payments and reductions.
3. Include the disclosures and attachments previously identified by the Court, including the explanations referenced in items 17d and 17e and a complete proposed order.
4. State the apportionment among all related claimants clearly and consistently.
5. Provide complete and internally consistent papers sufficient for the court to determine whether the compromise is fair, reasonable, and in Salem Griegh's best interest.

Court is to give notice.